



SLOVAKIA & INDIA ... SHARP CONTRAST !



Learning Space



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6 Another assault on India's social fabric

As voting day nears, electioneering is getting more vicious. The recent campaigning in tiny Slovakia is a study in contrast. In the cacophony of ugly charges and counter-charges, such as 'Chowkidaar chor hei' and 'tera pura khandaan chor hei', made by various political parties as Indian steps into another general elections, it comes as a surprise to find that there are countries, however tiny they might be, where elections are fought and won on a positive campaign and without hurling insults.

Last month, the central European country of Slovakia chose a female President for the first time in Zuzana Čaputová, a 45-year-old lawyer and anti-corruption campaigner. A political outsider, she won over 58 per cent of the vote by running her campaign on the plank of anti-corruption. She urged voters to stand up against and all that was wrong, and totally avoided personal attacks against her opponents. Instead, she kept talking about the importance of values such as humanism, solidarity and truth.

A political novice, Zuzana's popularity rating was in the single digits a few months before the polls, but she kept stressing on the need for progressive values, political reform, and liberal ethos, and won in the end.

More surprising, she displayed both poise and grace after her victory, saying that it showed "you can win without attacking your opponents". And win she did after fighting a positive campaign based on progressive values and political reform, and providing a moment of hope for liberal politics in central Europe.

Interestingly, her main political opponent was a votary of right-wing populism, whose campaign included ensuring Slovakia "retains its Christian values" and ill-masked rhetoric against LGBT rights.

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But Zuzana said the country had to vote for liberal values and inclusiveness, and she stood up both for gay rights and a woman's right to abortion. The burden of the song in her meetings was "unity and not division". As an activist she had taken up many civic causes in the community and had participated in anti-government protests over the murder of an investigative journalist, Ján Kuciak.

A positive message

The call for inclusiveness and liberal values is in stark contrast to the clear attempts being made by our politicians to divide us, not only now but over decades, along caste and communal lines. What is more, her victory speech was devoid of any gloating or triumphalism. She told a crowd of her supporters in Bratislava, the Slovakian capital: "Let us look for what connects us. Let us promote cooperation above personal interests. I am happy not just for the result, but that it is possible not to succumb to populism, to tell the truth, to raise interest without aggressive vocabulary."

But then there is a huge difference in an exercise to elect a President in a country with just over five million people and one with 1.3 billion people.

Even though ours is not a presidential referendum, this time around it is mimicking exactly that process, with the ruling dispensation pitching it as a vote for Prime Minister Narendra Modi. The rhetoric is simple: 'Do you want to vote for the macho Modi (mercifully we don't hear the 56-inch-chest bit much this time in the campaign) who is not scared to get into Pakistan and bomb terrorist camps or a wimp like the Congress President Rahul Gandhi, whose entire khandaan is mired in corruption scandals.'

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New lows

And in the josh of this rhetoric all boundaries are crossed and our electioneering reaches one new low after another. Rajasthan Governor Kalyan Singh, a key player in the Babri Masjid demolition, flouting all Constitutional norms, said unequivocally that people should vote for Modi as he deserved a second term. And Uttar Pradesh's sanyasi-CM Yogi Adityanath rechristened the Indian Army as Modi sena. Both have been indicted by the Election Commission, but the damage is done. The rent-seeking that is going on in the name of the ruling dispensation is shameful.

And in the run-up to the voting day, the pitch is only going to get murkier. Exactly opposite to what Slovakia's new President said, or what New Zealand Prime Minister Jacinda Ardern is doing to ensure that the country remains united and devoid of hate-mongering following the terror attack on the Christchurch mosques. The shrieking, name-calling, jingoism, jibes and insults are only going to get more vicious; and aggressive attempts will continue to plant suspicion and hatred in our minds and hearts.

And victors, from whichever camp, will march triumphantly on the bruised and battered social, liberal and tolerant fabric of this country. No acche din or nyuntam aay yojanas will be able to mend that fabric for a long time. For, after all, how much hatred and assault can the backbone of any nation take?

6 Campaign bar: Powers of the Election Commission, and how it has used them in the past

The only other occasions on which the EC has acted in a similar manner against violations of the Model Code have been in 2014.

On Monday, the Election Commission of India barred Uttar Pradesh Chief Minister Yogi Adityanath and BSP chief Mayawati for three days and two days respectively for making “highly provocative” speeches that could “aggravate existing differences and create mutual hatred between different religious communities”.

Later in the evening, the Commission issued orders also barring Azam Khan of the Samajwadi Party and Maneka Gandhi of the BJP from campaigning for three days and two days respectively starting 10 am on Tuesday.

Such action by the Election Commission is rare — and it came on a day it told the Supreme Court that its power to act against violations of the Model Code of Conduct was limited to “issuing of notice” and “advisories”, and “in case of repeated violation of the advisories,... to file a First Information Report with the Police for initiation of criminal proceedings”.

The court responded that it would “like to examine the matter”, and asked the Commission to send a “representative... who is well conversant with the issues raised” to the court on Tuesday.

The offences

The ban on campaigning by Adityanath and Mayawati begins at 6 am on Tuesday. It means the leaders will miss the last day of the campaign ahead of the second phase of elections on April 18. Eight UP constituencies — Nagina, Amroha, Bulandshahr, Aligarh, Hathras, Mathura, Agra, and Fatehpur Sikri — will vote in the second phase.

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Mayawati was scheduled to address a rally in Agra on Tuesday, which she will not be able to do now. Yogi was to address rallies in Nagina and Fatehpur Sikri, and was expected to campaign outside UP on April 17 and 18.

The EC has censured Mayawati for her speech in Deoband on April 7, in which a “special mention was made to the minority community of Muslims to vote in a consolidated manner in favour of the candidate of coalition parties”; and Adityanath for his ‘Ali and Bajrang Bali’ comment in Meerut on April 9, and for referring to the “hara virus”, indicating Muslims. The EC said that as senior leaders they “should have desisted... (from) making statements that have the undertone and propensity to polarize the elections”.

Khan has been punished for making derogatory remarks against the BJP candidate from Rampur, Jaya Prada; Maneka for telling Muslims that if they do not vote for her, they should not expect help after she wins.

Earlier instances

The only other occasions on which the EC has acted in a similar manner against violations of the Model Code have been in 2014.

It had banned Azam Khan and BJP president Amit Shah from holding public meetings, processions, or road shows in UP, and had directed the state chief secretary to initiate criminal proceedings against them in case there was a violation. The ban on Shah was lifted after he wrote to the Commission promising that he would not disturb public tranquility or law and order. According to the poll panel, Shah vowed not to use “abusive or derogatory language”.

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Also during that Lok Sabha election campaign, the EC had banned BJP leader Giriraj Singh from campaigning in Jharkhand and Bihar for saying that those who did not vote for Narendra Modi, then the prime ministerial candidate of the BJP, would have to go to Pakistan.

Code and Court

When the elections were announced, the EC had issued a detailed 286-page Code of Conduct for parties. On April 5, it issued a general advisory, seeking “strict compliance” of instructions such as “No appeal shall be made on the basis of caste/communal feelings of the voters; no activities which may aggravate existing differences or create mutual hatred or cause tension between different castes/communities/religious/linguistic groups shall be attempted; and no temples/mosques/churches/gurudwaras or any place of worship is to be used for election propaganda, including speeches, posters, music etc or electioneering”.

Separately, the Commission has asked parties and candidates to desist from displaying photographs of defence personnel or photographs of functions involving defence personnel, in campaign advertisements. However, it did not issue any order after Opposition parties complained that BJP leaders were “politicising” the armed forces.

An EC official said action depended on the “gravity of the offence” and on whether the accused was a “serial offender”. However, hate speech would attract several provisions under the Indian Penal Code, the Code of Criminal Procedure, and The Representation of the People Act.

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“The EC could separately file a complaint with the police under IPC provisions. If no one approaches the court, election officials can do so themselves,” the EC official said. “The court can refer charges of corrupt practices to the President, who can seek the views of the Election Commission. The Election Commission can advise barring the individual from casting his/her vote for six years.”

In 1999, Shiv Sena supremo Bal Thackeray was banned by the EC from casting his vote and contesting elections for six years with effect from 1995. Thackeray had delivered an inflammatory speech at a rally in Mumbai in 1987 while campaigning for an Assembly bypoll. The Commission’s order, which came after 12 years, was based on a 1995 judgment of the Supreme Court, which confirmed the Bombay High Court order that found Thackeray guilty.

The Model Code of Conduct, which evolved from a draft code voluntarily approved by representatives of leading political parties in Kerala in February 1960, has been in place since 1962, when the Election Commission circulated it to all recognised parties. “But a lot of time has passed, and the nature of elections and electioneering have undergone many changes. It is time to revise it thoroughly,” the EC official said.

ELECTION CAMPAIGN IN SLOVAKIA



- Slovakia chose female President for the first time, she is Zuzana Caputova, a 45-year-old lawyer and anti-corruption campaigner.
- She won over 58% of the vote by running her campaign on the plank of anti-corruption.

HOW THE ELECTIONEERING WENT-ON?

6 She altogether fought with positive campaign based on progressive values and political reforms and providing a moment of hope for liberal politics in Central Europe.

5 She said after the victory, "you can win without attacking your opponents".

This is quite opposite to the Indian politicians, whose campaigns run on caste and communal lines!



ELECTION CAMPAIGN IN SLOVAKIA

1 She urged the voters to stand up against all that was wrong.

2 She totally avoided personal attacks against her opponents.

3 She kept talking about the importance of values such as humanism, solidarity and truth.

4 She kept stressing on the need for progressive values, political reforms and liberal ethos.



SEE THE CONTRAST IN INDIA!



YOGI ADITYANATH
CHIEF MINISTER OF UP



MAYAWATI
CHIEF OF BAHUJAN SAMAJ PARTY

- Recently Election Commission told the Supreme Court that ECs powers for violation of MCC are limited to issuing of notice and advisories and in case of repeated violation of the advisories, FIRs can be filed with the police for initiation of criminal proceedings.
- Subsequently, it has taken action for highly provocative speeches that could aggravate existing differences and create mutual hatred between different religious communities.



MANEKA GANDHI
UNION CABINET MINISTER FOR
WOMEN & CHILD DEVELOPMENT



AZAM KHAN
LEADER OF SAMAJWADI PARTY

WHAT ARE THE OTHER OPTIONS AVAILABLE FOR THE ECI?



- 1 There are several provisions under IPC, Code of Criminal Procedure and the Representation of the People Act, which attract punishment for hate speech.
- 2 EC could also file complaint with the police under IPC provisions.
- 3 The Court can refer charges of corrupt practices to the President, which can seek the views of the Election Commission.
- 4 The Election Commission can advise barring the individual from casting his/her vote for 6-years.

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